

		application for order shortening time on hearing for motion, 3.0 hours to review the opposition and to draft the reply, and an anticipated 1.0 hours to attend the hearing. The Court finds that 2.0 hours to review the opposition and to draft the reply, and 1.0 hours to attend the hearing to be reasonably incurred for this motion. With regards to the time to draft and prepare the instant motion, FRG requests \$1,062.50 for 2.5 hours of work. Given the relatively simple nature of this motion, the Court finds 1 hour to be reasonably incurred for drafting this motion. Based on the foregoing, the Court GRANTS monetary sanctions in the reduced amount of \$ 1,700 (\$425 x 4 hours) against Loko and its counsel, to be paid within 30 days. <i>Loko's Objection to Reply Declaration</i> Loko objects to the supplemental reply declaration of Patrick Hormillosa as entirely additional evidence. The general rule of motion practice is that new evidence is not permitted with reply papers, and should only be allowed in an exceptional case. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) If allowed, the other party should be given an opportunity to respond. (<i>Id.</i> at p. 1538.) There is an exception for points that are strictly responsive to arguments made for the first time in opposition. (<i>Golden Door Properties, LLC v. Superior Court of San Diego County</i> (2020) 53 Cal.App.5th 733, 774.) Upon review of the supplemental reply declaration, paragraphs 1-4 and 7 are responsive to arguments raised in the reply, i.e., that Loko produced documents and that FRG's request for monetary sanctions should be significantly reduced. Therefore, the Court considers those portions of the supplemental reply declaration. Paragraphs 5 and 6 present new evidence which is not responsive to arguments raised in the moving papers or reply. The Court disregards these paragraphs. FRG to give notice.
6.	30-2024-01372374 Associated Ready Mixed Concrete, Inc vs. GT Commercial Concrete, Inc	1. Motion to Deem Facts Admitted 2. Motion to Deem Facts Admitted Plaintiff Associated Ready Mixed Concrete, Inc. ("Plaintiff") moves for an order that Plaintiff's First Set of Requests For Admissions propounded upon defendants Todd Hand and GT Commercial Concrete, Inc. ("Defendants") on July 25, 2025 be deemed admitted. Plaintiff also seeks monetary sanctions against Defendants and their counsel. However, the Court Trial in this matter was set for December 1, 2025 when these motions were filed with all discovery deadlines to be based on that trial date. (See ROA 75.) Parties may have motions concerning discovery heard on or before the 15th day before the date initially set for the trial of the action. (Code Civ. Proc., § 2024.030(a).) Plaintiff filed these motions with a hearing date of June 4, 2026, knowing that they would not be heard until after the then-set trial date and made no attempts to advance the hearing date. Thus, the motions are DENIED. Plaintiff to give notice.